

02:00 PM **LINE 4**

25-CIV-00601

KEVIN RAMOS VS. SAN MATEO COUNTY TRANSIT DISTRICT, ET AL.

KEVIN RAMOS
SAN MATEO COUNTY TRANSIT DISTRICT

PRO SE
DANIELLE K. LEWIS

Plaintiff's Motion to Compel Further Responses Regarding the Defendant's Responses to Form Interrogatories Set 2

TENTATIVE RULING:

Initially, the court notes that plaintiff has not provided the complete address for the hearing. Department 28 is located at the Central Courthouse, Courtroom I, 800 North Humboldt Street, San Mateo, CA 94401. (*See* Cal. Rules of Court, Rule 3.1110 [the Notice "must specify" the location of the hearing].)

Plaintiff Kevin Ramos' *1st Amended ... Motion to Compel Further Responses Regarding the Defendant's Responses to Form Interrogatories Set 2* is **GRANTED in part**.

A. Background

In his Second Amended Complaint (SAC), plaintiff alleges that on May 17, 2024, he suffered damages from having been assaulted by a fellow passenger on a bus operated by defendant San Mateo County Transit District (SamTrans).

The court granted two anti-SLAPP motions brought against plaintiff's First Amended Complaint, one by SamTrans and defendants Steve Wagman and Marshall Rush (Order, signed on October 22, 2025), and the other by defendant Ann Lee (Order, signed on November 4, 2025), as to the second through eighth causes of action. The only remaining cause of action in the SAC, for "Premises Liability/Negligent Security," is pled solely against SamTrans.

Defendant responded to plaintiff's Form Interrogatories (FROGs) Set #2 on December 29, 2025. (Ramos Decl., ¶ 2.) Plaintiff filed an initial version of this Motion on January 12, 2026. However, the January 2026 hearing of that motion was ordered off-calendar, and an informal discovery conference (IDC) scheduled instead. (Order, January 16, 2026.) A further version of the Motion was filed on March 5, 2026, and the instant Motion was filed on June 22, 2026. Because June 22, 2026 was the last day to file a motion for hearing on July 15, 2026 (Code Civ. Proc., § 1005, subd. (b)), the court regards the moving papers filed on June 22, 2026, to be the operative motion, and disregards the earlier-filed papers.

Except for a proof of service of the first version of the Motion filed on January 16, 2026, no other proof of service has been filed listing either the March version nor the June 22 version of the motion considered here. However, defendant has waived any defects in or irregularities of

notice by filing an Opposition to the Motion. (*Tate v. Superior Court* (1975) 45 Cal.App.3d 925, 929.)

The court addressed the initial version of the Motion at an IDC. (Minute Order, February 26, 2026.) There, the Commissioner found that:

it appears that the discovery herein substantially relates to Plaintiff hoping to learn how Defendant went about preparing its prior re[sp]onses, what steps it took to search for certain requested documents or items, and so forth. Plaintiff's stated overarching goal in pursuing these lines of inquiry appears to be to find grounds to bring a motion for sanctions against Defendant for Plaintiff's belief that Defendant has engaged in abuse of the discovery process. Plaintiff's belief appears to have origins in his efforts to discover whether any incident reports or audio recordings existed as to the incident which is the underlying subject of this lawsuit.

(Minute Order, at pp.1-2.) The Commissioner noted that, *inter alia*, "Plaintiff indicated at the IDC that he would seek issue and/or terminating sanctions" (*id.*, p.2), but that "Judge Healy declined to impose monetary sanctions upon Defendant" in ruling upon plaintiff's earlier motion to compel further responses to his Request for Production (RFP), Set One (*id.*, p.3). (*See* Minute Order, December 17, 2025.) Accordingly, the Commissioner noted that plaintiff's further pursuit of motions for issue or terminating sanctions "would be without merit." (Minute Order, February 26, 2026, p.3.)

B. Defendant's Motion is Granted in Part

Plaintiff seeks further responses to his Form Interrogatories Set #2, Nos. 1.1, 12.1, 12.3, and 12.6. Plaintiff asserts that defendant's responses are incomplete, such as by failing to include telephone numbers and addresses as specified by the Form, and failing to include all known names of relevant persons. Plaintiff further asserts that defendant's objections are irrelevant or too general. (Code Civ. Proc., § 2030.300, subd. (a)(3).)

A propounding party may move to compel further responses where, as here, the responding party's responses are evasive or incomplete (Code Civ. Proc., § 2030.300, subd. (a)(1)), or incorporate meritless or overly general objections. (*Id.*, § 2030.300, subd. (a)(3).)

Having reviewed the moving, opposing, and reply papers, except for defendant's objections to FROG No. 1.1, defendant's objections appear not to consist of mere boilerplate or are irrelevant. However, certain of defendant's discovery responses are incomplete.

Defendant is required to state with particularity the efforts made to obtain and produce responsive information:

Verification of the answers is in effect a declaration that the party has disclosed all information which is available to him. If only partial answers can be supplied, the answers should reveal all information then available to the party. If a person cannot furnish details, he should set forth the efforts made to secure the information. He

cannot plead ignorance to information which can be obtained from sources under his control.

(*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 782, superseded on other grounds; Code Civ. Proc., § 2030.220, subd. (c).)

Defendant's response to FROG No. 1.1 is incomplete. Although defendant indicates that because the person who assisted in preparing the responses is represented by defendant's counsel, any communications should be directed to counsel. However, counsel's contact information should have been included in the response. Moreover, it is unclear why the response is made "on information and/or belief." Defendant is therefore ordered to amend the response.

Defendant's responses to FROGs Nos. 12.1, and 12.6 are also incomplete, as the document or documents to which defendant refers are not attached, and defendant does not direct plaintiff to the pages and sections where the answers can be found, as instructed by the FROGs. FROG No. 12.6 also appears to require additional information regarding the authors or recipients of any reports.

In its Opposition, defendant cites Code of Civil Procedure, section 2030.230. (Opp., at p. 3 (misnumbered):19-21.) That statute provides in part that:

If the answer to an interrogatory would necessitate the preparation or the making of a compilation, abstract, audit, or summary of or from the documents of the party to whom the interrogatory is directed, and if the burden or expense of preparing or making it would be substantially the same for the party propounding the interrogatory as for the responding party, it is a sufficient answer to that interrogatory to refer to this section and to specify the writings from which the answer may be derived or ascertained. This specification shall be in sufficient detail to permit the propounding party to locate and to identify, as readily as the responding party can, the documents from which the answer may be ascertained.

(Code Civ. Proc., § 2030.230.) While a party may supply documents in lieu of an answer to the interrogatory, it must state with specificity where the propounding party may find the answer to the interrogatory. Because the documents were not attached to the response, the court cannot determine whether merely identifying the documents is a sufficient response.

As to FROG No. 12.3, which seeks written or recorded statements from "any individual concerning the INCIDENT," SamTrans has responded by among other objections, asserting attorney work product and attorney-client privilege. (Pltf's Sep. Stmt., at p. 16, citing defendant's response to FROG No. 12.3; Code Civ. Proc., § 2018.030, subd. (a); *Coito v. Superior Court* (2012) 54 Cal.4th 480; *Nacht & Lewis Architects, Inc. v. Superior Court* (1996) 47 Cal.App.4th 214, 217.) To the extent that SamTrans conducted any interviews or obtained witness statements at the direction or with the assistance of counsel, such statements would appear to be privileged. However, defendant should state whether it is withholding any such

statements on the basis of the attorney work product and/or attorney-client privilege or whether no such statements exist.

FROG No. 12.6, seeks any “report” of the incident SamTrans has responded by referring plaintiff to the “Operator Incident Report, the Customer Service Recording Form dated May 31, 2024, and the Customer Service Recording Form dated May 20, 2024, which were previously produced.” (Pltf’s Sep. Stmt., at p. 20, citing defendant’s response to FROG No. 12.6.) It is unclear whether the reports themselves identify “(c) The name, ADDRESS, and telephone number of the PERSON for whom the report was made; and (d) The name, ADDRESS, and telephone number of each PERSON who has the original or a copy of the report.”

Defendant objects, including on the ground that the interrogatory seeks privileged information or would violate the privacy rights of third parties. The reports themselves are clearly not privileged, because they have been produced to plaintiff. To the extent that defendant has non-privileged information about the authors or recipients, it should be produced. It is unclear how this information would affect a third party’s privacy rights if the report was created or supplied to them in the course of their employment, particularly if they are identified in the reports.

Discovery motions are disfavored; the parties are required to meet and confer in good faith to attempt to reach a compromise. “A reasonable and good-faith attempt at informal resolution entails something more than bickering with deponent’s counsel Rather, the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate.” (*Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1439.) The discovery statutes “require[s] that there be a serious effort at negotiation and informal resolution.” (*Id.*, at p. 1438.) Here, the motion could have been avoided if the parties meaningfully met and conferred and discussed what evidence plaintiff sought and defendant’s responses.

Defendant shall have fifteen (15) days from notice of entry of this order to serve code-compliant responses to plaintiff’s Form Interrogatories Set #2, Nos. 1.1, 12.1, 12.3, and 12.6.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendant’s counsel shall prepare a written order consistent with the court’s ruling for the court’s signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

02:00 PM **LINE 5**

25-CIV-00601

KEVIN RAMOS VS. SAN MATEO COUNTY TRANSIT DISTRICT, ET AL.

KEVIN RAMOS
SAN MATEO COUNTY TRANSIT DISTRICT

PRO SE
DANIELLE K. LEWIS

Plaintiff's Motion to Compel Further Responses Regarding the Defendant's Responses to Request for Production Set 3

TENTATIVE RULING:

Initially, the court notes that plaintiff has not provided the complete address for the hearing. Department 28 is located at the Central Courthouse, Courtroom I, 800 North Humboldt Street, San Mateo, CA 94401. (*See* Cal. Rules of Court, Rule 3.1110 [the Notice "must specify" the location of the hearing].)

Plaintiff Kevin Ramos' *1st Amended ... Motion to Compel Further Responses Regarding the Defendant's Responses to Request for Production Set #3* (Motion) is **DENIED**.

A. Background

In his Second Amended Complaint (SAC), plaintiff alleges that on May 17, 2024, he suffered damages from having been assaulted by a fellow passenger on a bus operated by defendant San Mateo County Transit District (SamTrans).

The court granted two anti-SLAPP motions brought against plaintiff's First Amended Complaint, one by SamTrans and defendants Steve Wagman and Marshall Rush (Order, signed on October 22, 2025), and the other by defendant Ann Lee (Order, signed on November 4, 2025), as to the second through eighth causes of action. The only remaining cause of action in the SAC, for "Premises Liability/Negligent Security," is pled solely against SamTrans.

Defendant responded to plaintiff's Request for Production (RFP) Set #3 on January 20, 2026. (Ramos Decl., ¶ 2.) Plaintiff filed an initial version of this Motion on January 29, 2026. Plaintiff then filed a further version of this Motion on March 5, 2026, and yet another version of this Motion on June 22, 2026. Because June 22, 2026, was the last day to file a motion for hearing on July 15, 2026 (Code Civ. Proc., § 1005, subd. (b)), the court regards the moving papers filed on June 22, 2026, to be the operative motion, and disregards the earlier filed papers.

No proof of service has been filed. However, defendant has waived any defects in or irregularities of notice by filing an Opposition to the Motion. (*Tate v. Superior Court* (1975) 45 Cal.App.3d 925, 929.)